

[*503] whelming proportion of the value, * for it cannot be supposed that the trustees were meant to purchase land without trees upon it.

13. **Mines.** — Trustees again should not purchase *mines*; for if the mines be open, the tenant for life might exhaust them, and leave nothing to the remainderman; and if not open, the tenant for life, if impeachable for waste, would get nothing and the remainderman would take the whole (*a*). But under *special circumstances* the Court has sanctioned the purchase of mines (*b*).

14. **Advowsons.** — *Advowsons* again would be very undesirable as a purchase, for though the advowson or any particular presentation (before a vacancy) might be sold, there would be no annual or regular fruit. The remainderman, *after* the tenant for life's death, might sell the advowson and get back all he was entitled to; but in the meantime the tenant for life would be reaping no benefit.

15. **Copyholds for lives.** — Copyholds for *lives*, if customarily renewable, might substantially be equal to freeholds, but they would not fall within the terms of a trust to purchase estates of *inheritance* (*c*).

16. **Trustees buying from one of themselves.** — Trustees having a trust or power to purchase must exercise a *joint* discretion as to the propriety of the purchase, and, therefore, as no man can be judge in his own case, they are precluded from buying from one of themselves. If such a purchase be really desirable, it might be carried out by a friendly suit for obtaining the sanction of the Court.

17. **Consent of tenant for life.** — A trust or power to purchase is sometimes accompanied with a condition that it shall be with the *consent of the tenant for life*. In such a

impeachable for waste in respect of timber may cut and sell ripe timber and will be entitled to one-fourth of the proceeds.]

[(*a*) But see now 45 & 46 Vict. c. 38, ss. 6–11, under which the tenant for life whether impeachable for waste or not may grant mining leases and will be entitled to one-fourth or three-

fourths of the mineral rents as the case may be.]

(*b*) *Bellot v. Littler*, W. N. 1874, p. 156.

(*c*) *Trench v. Harrison*, 17 Sim. 111. N. B. The words "of inheritance" in the marginal note, do not occur in the statement of the settlement in the body of the Report, but seem to be implied.